Tentative Rulings
June 24, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person or via CourtCall (888-882-6878 or www.courtcall.com). Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, the tentative ruling will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory, either in person or via CourtCall. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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10. *Alumistar Inc. v. National Thermal Processing, Inc.,* Case No. CIVSB2532906
Application for Right to Attach Order and Order for Issuance of Writ of Attachment
6/24/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Objections:*</u> The Court would **OVERRULE** Defendant National's objection numbers 1-8.

<u>*As to the Application:*</u> The Court would **DENY**.

Case Summary

Plaintiff alleges that it sent pre-fabricated aluminum metal components to Defendant National for heat-treatment, but the work was done improperly, resulting in damage to the components. (Compl., ¶¶11-12 & 24.) As such, Plaintiff filed suit on November 6, 2025, alleging (1) breach of contract and (2) negligence.

Summary of the Law

To use the creditor must establish a *prima facie* claim, and the court is required to make a preliminary determination of the merits of the dispute. (*Lorber Industries of Calif. v. Turbulence, Inc.* (1985) 175 Cal.App.3d 532, 535.) The plaintiff has the burden of proving: (1) the claim is one on which an attachment may be issued; (2) the probable validity of such claim; and (3) that the attachment is not sought for any purpose other than to secure recovery on the claim. (Code Civ. Proc., § 484.090.)

Under Code of Civil Procedure section 483.010(a)-(c), an attachment may be issued only if the claim sued upon meets the following requirements:

(1) The action is a claim for money based upon a contract, express, or implied;
(2) The total amount of the claim is a fixed or readily ascertainable amount not less than $500, exclusive of costs, interest and attorney's fees;
(3) The claim is not secured by an interest in real property, unless the claim was originally secured by an interest in real property but the security has become valueless or worth less than the claim it secures, through no fault of the creditor; and
(4) If the action is against a defendant who is a natural person, the claim arises out of the conduct by the defendant of a trade, business or profession.

Analysis

Probable Validity – National argues that Plaintiff has failed to meet its burden to show the probable validity of its claim. National asserts that any alleged damage to the components occurred while the parts were in transit and resulted from Plaintiff's inadequate packaging. (Thayer Decl., ¶9, Exh. A.) National also asserts that if the parts were damaged, it was because Plaintiff provided faulty instructions. National argues that it oriented the parts during the heat-treatment process as instructed by Plaintiff, but, after the process had been completed, Plaintiff complained that the components should have been oriented differently while being treated. (Thayer Decl., ¶10.) National further argues that it used the same treatment process (same oven, same temperature, same components) on other parts provided by Plaintiff during the same period without any issues. (Thayer Decl., ¶11.) And, National has not received complaints from other customers from the relevant time period despite using the same ovens and procedures used on Plaintiff's components. (Thayer Decl., ¶12.)

In general, "[a] claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., § 481.190.) Here, Plaintiff's declaration fails to set forth with "particularity" the facts to establish the probable validity of its claim. (Code Civ. Proc., § 482.040.)

Plaintiff's claim is based on its sending components to National under purchase orders that required certain heat-treatments be applied to the parts. he only evidence provided by Plaintiff that National improperly heat-treated the components at issue is Lake's conclusory statements that National failed to provide the proper heat treatments pursuant to the purchase orders. Plaintiff provides no underlying factual evidence to show that the heat-treatments requested in the purchase orders were not applied or how the treatment that was applied damaged the components. Although stating there was "physical damage to the components" that made them "non-salvageable," there is no evidence that this damage was the result of the heat-treatment.

Readily Ascertainable Damages – National also argues that Plaintiff failed to meet its burden to show that its damages are fixed or readily ascertainable. National asserts that Plaintiff fails to provide support for its damage calculation and it cannot be ascertained if the claimed amount represents actual loss, anticipated profits, customer billing, or something else.

"It is a well-recognized rule of law in this state that an attachment will lie upon a cause of action for damages for a breach of contract where the damages are readily ascertainable by reference to the contract and the basis of the computation of damages appears to be reasonable and definite." (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc*. (2004) 115 Cal.App.4th 537, 540.) "But the contract sued on must furnish a standard by which the amount due may be clearly ascertained and there must exist a basis upon which the damages can be determined by proof." (*Ibid.*)

Here, Plaintiff has not met its burden to show that its damages are "readily ascertainable": The purchase orders contain quantities, component numbers, and job numbers; no pricing information is included in the orders. Thus, the purchase orders by themselves provide no standard by which the amount of damages may be clearly calculated. Plaintiff does not refer to the orders in calculating its damages. Instead, Plaintiff states that it "analyzed the damages" to the components and then "technically calculated the value of damages based on" how far along the component was in the manufacturing process. (Lake Decl., ¶8.)

Further, Plaintiff provided “invoices” to National reflecting the damages claimed, but these documents were sent after the fact; are not contracts between the parties; and do not adequately explain how the prices were determined.

Furthermore, Plaintiff appears to include improper items in its damage calculation. Plaintiff seeks to recover both the replacement cost of each component, as well as the amount its customers would have paid to Plaintiff for the component. Plaintiff also includes attorneys’ fees in its calculations which are not provided for in the purchase orders.

In all, it does not appear that damages are readily ascertainable.

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11. *Avedian v. Citizens Business Bank, et al,* Case No. CIVSB2133301
Defendant’s Motion to Confirm Arbitration Award
6/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** this unopposed motion.

Case Summary

This is a wage-and-hour class and representative action. Plaintiff originally filed on December 7, 2021, alleging violations related to (1) payment of minimum wages; (2) payment of overtime wages; (3) meal periods; (4) rest breaks; (5) wage statements; (6) paycheck deductions; (7) wage timeliness; (8) final pay; as well as (9) violation of the unfair competition law. The complaint alleged a class of hourly, non-exempt employees working as service representatives, tellers, and related positions. On April 26, 2022, Plaintiff filed a First Amended Complaint (FAC) to add a cause of action for civil penalties pursuant to the Private Attorneys General Act (PAGA).

Relevant here, on October 13, 2022, this Court, under Judge David Cohn, stayed the PAGA claim and ordered the remaining individual causes to arbitration. (Tentative, Oct. 13, 2022.) At arbitration, Defendant brought – and prevailed on – a motion for summary judgment on the underlying individual wage-and-hour claims, as well as the unfair competition law claims that was underpinned by the allege wage-and-hour violations. Thus, the arbitrator held that causes of action 1 through 9 were <u>not</u> established, and she issued a Final Award to that effect. (See Motion, Attachment 8(c).)

Analysis

While Plaintiff has submitted a “response” to the motion, the motion is unopposed. (See Response 2:3 [“Plaintiff will not attempt to oppose . . .”].) A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].)

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12. *Sundel Power, Inc. v. American West College, et al,* Case No. CIVSB2431709
Plaintiff's Motion to Strike Answer
6/24/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY** Plaintiff's motion. However, the Court would **ORDER** Defendants American West and Hong to either (1) deliver the $1,920 payment at the hearing or (2) hand-deliver the check to Plaintiff's Counsel by no later than June 26, 2026. If Defendants fail to do so, Plaintiff may bring an *ex parte* on or after June 30, 2026, seeking daily imposed sanctions until compliance pursuant to the Court's inherent authority to enforce its orders.

Case Summary

This case relates to a real property sale. Plaintiff alleges that Defendants American West and Hong were the owners and sellers of certain real property in Wrightwood, California. Plaintiff also alleges that, on September 23, 2025, they entered into a written agreement to sell the property to Plaintiff. Other named Defendants have an interest in the property. (Compl., ¶18.) However, despite the contract, Defendant American West refused to sell. As such, Plaintiff filed suit on November 4, 2024, alleging causes for (1) specific performance; (2) quiet title; (3) declaratory relief; (4) breach of contract; (5) fraud; (6) negligent misrepresentation; (7) recission of contract; and (8) conversion.

Statement of the Law

Code of Civil Procedure section 436(a) states that matters that are irrelevant, false, or improper are subject to a motion to strike. "Irrelevant" means any immaterial allegation, and "immaterial" means (1) an allegation that is not essential to the statement of a claim or defense; (2) an allegation that is neither pertinent to nor supported by a sufficient claim or defense; or (3) a demand for relief not supported by the allegations. (Code Civ. Proc., § 431.10(b)-(c).) Additionally, all or part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., § 436(b).)

Analysis

As a preliminary matter, Plaintiff has brought its motion per Code of Civil Procedure sections 435 and 436 but fails to comply with the meet-and-confer obligation. No declaration was filed attesting to meeting and conferring over the merits of the motion via telephone, teleconference, or in person. On this basis alone, the Court has discretion to deny.

However, the Court need not rely on this shortcoming. The basis of the motion is that, when Defendants' defaults were set aside, they were ordered to pay $1,920, which they have not yet done. (Park Decl., ¶¶4 & 6.) Now, Defendant Hong attests that he was not aware of the need to pay, and, upon learning of that obligation, he tried tendering the check to the Court. The Court rejected the payment because it needed to be paid directly to Plaintiff's Counsel. He has since delivered the check to his new counsel who is in possession and ready and willing to provide it to Plaintiff's Counsel. Attorney Kym contacted Plaintiff's Counsel about the money, but Counsel refused to withdraw this motion and accept the payment. (Hong Decl., ¶¶3-8; Kym Decl., ¶¶5-7.)

The primary problem with Plaintiff's position is that it argues and contends that the payment of the $1,920 was a *condition precedent* for the set aside of American West and Hong's defaults and for filing their Answer. However, that is not what the adopted tentative ruling on February 17, 2026, states. It simply *granted* the motion and then "further ordered" the payment. (See Tentative, Feb. 17, 2026.) Nothing in the language used imposed the payment as a condition precedent for the setting aside of the defaults.

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